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Paper : Advanced Jurisprudence
Module : Hart and his Critics



Component of an e-Content Module - (8)

Component-I (A)- Personal Details

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Component-I (B)- Description of Module

Subject Name	Law
Paper Name	Advanced Jurisprudence



Module Name/Title	Hart and his Critics
Module ID	8
Prerequisites	
Objectives	• To understand the main criticisms and challenges levelled against HLA Hart • To understand the responses to the above • To appreciate where positivism stands in contemporary discourses in jurisprudence
Keywords	Internal Morality, Private Morality, Public Morality, Formal Sources of Law, Informal Sources of Law, Semantic Sting

Component-II e- Text :

Hart and his Critics

(8.1) Introduction

Classical Austinian positivism dominated Anglo-American jurisprudence between the second half of the Nineteenth Century and the first few decades of the Twentieth. Scholars such as Salmond, Holland, even Hohfeld, devoted themselves to the value-neutral analysis of existing concepts such as rights, duties, property, ownership and so forth. They spent little time on questions such as what law itself could mean. One might even say jurisprudence tended towards the stagnant.

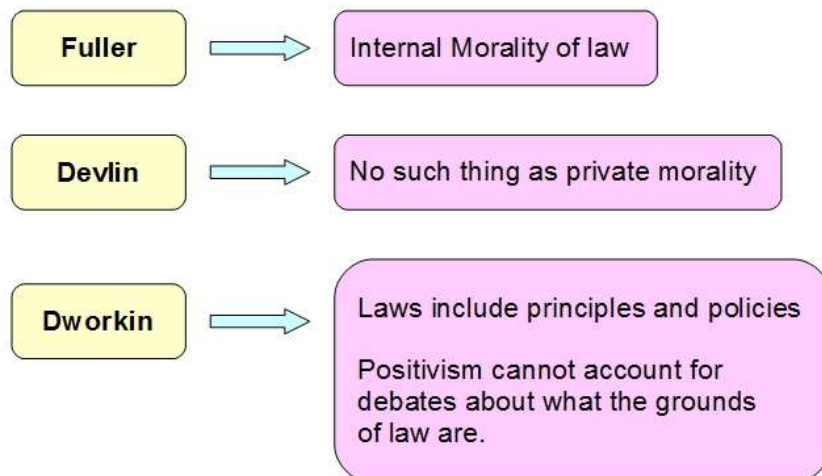
The Twentieth Century was a tumultuous one. Its first half alone saw two World Wars; the rise of socialist states; the Great Depression which shattered the economy of most of the world; and then former colonies like India gaining independence. Along with political and economic upheavals came social and especially cultural change. In India untouchability and the zamindari system were abolished. African-Americans acquired in the United States the right to equality. Sexual freedom became more commonplace; homosexuality gained widespread acceptance. These events impelled a deep rethink on law, the role it served in society, and especially its connection with morality. Take for example atrocities committed by Nazis during the Second World War: merely because it had been sanctioned by law, could we treat it as legitimate? And if not, then on what legal or jurisprudential basis can we challenge its legitimacy? Similarly, to what extent does the law have the right to impose specific conceptions of morality on people?

The foregoing developments, particularly issues that demanded a rethink on law's connection with morality, put to severe test the positivist conception of law. The natural law school underwent a revival of sorts, with thinkers such as Fuller and later Dworkin employing innovative new strategies to challenge the basic

precepts of positivism. On the other hand, Hart revitalised positivist traditions by rejecting some aspects of classical positivism (e.g. the treatment of law as commands or orders backed by threats), and emphatically endorsing others aspects, particularly its core tenet of separating law from morality.

It is thus that the last sixty-odd years witnessed several debates between Hart's positivism and its detractors. These debates have contributed much to our understanding of law and its role in society. In this lesson we discuss arguably the three most significant debates, namely the interchanges Hart had with Fuller, Devlin, and Dworkin respectively.

Hart's Critics – An Overview



Before we begin, a caveat: Hart, Fuller and Dworkin were legal theorists of immense stature who added significantly to the subject. Their theoretical contributions are discussed in individual lessons dedicated to each of them separately. To avoid overlaps with these lessons, here we shall confine ourselves exclusively to their debates with Hart.

(8.2) The Hart-Fuller Debate

The Hart-Fuller debate took root in the immediate aftermath of the Second World War. Apart from other things, the war was notable for the atrocities of unprecedented magnitude committed by German, including German armed forces. Legally speaking, as Hart himself points out, the problem with criminally prosecuting such atrocities is that they had been carried out according to law



then in force.¹ Perpetrators of war crimes proffered an even stronger argument, namely they were only subordinates following superiors' orders.² And yet could their acts have gone unpunished, given the magnitude of atrocities they perpetrated? To legal theorists of that era, the answer lay in how the concept of 'law' is to be understood.

(8.2.1) Hart's Approach

To set out his own perspectives on this issue, Hart used as an anchor the views of Gustav Radbruch, a German legal theorist. Prior to the war, Radbruch identified himself as a positivist. However, after encountering at first hand the terrors of the Nazi regime, he concluded that positivism or the idea of 'law as law' had contributed much to *first* 'the ease with which the Nazi regime had exploited subservience to mere law'; and *second* 'the failure of the German legal profession to protest against the enormities which they were required to perpetrate in the name of law'.³

Hart criticised Radbruch on two counts. First he pointed out that Radbruch did not explain just why this emphasis on 'law as law' and the separation of law and morality led to such perversions in Germany, but was associated with the 'most enlightened liberal attitudes' elsewhere.⁴ Secondly, and perhaps a cause behind the first, Radbruch conflated the statement 'X is a rule' with the different statement 'X must be obeyed'.⁵ In other words, Hart seems to imply here that merely because X is a rule does not of itself mean X must be followed. (This is reinforced at a later point when he talked about 'laws may be law but too evil to be obeyed'.⁶)

To expound on this, Hart took the example of a woman who exploited a Nazi law for her own ends. Wishing to get rid of her husband, who had come back from fighting in the Eastern Front, she informed authorities that he had made insulting remarks about Hitler. This amounted to a capital offence at that time. Somehow, however, husband was not executed but merely imprisoned. After the war he prosecuted his wife, who took the defence that she had only acted according to the law then in force.⁷ The matter reached the Court of Appeal, which rejected this defence on grounds that the law under which she had acted was 'was contrary to the sound conscience and sense of justice of all decent human

¹HLA Hart, 'Positivism and the Separation of Law and Morals' (1958) 71 Harv L R 593, 618-19.

²See A Breton and R Wintrobe, 'The Bureaucracy of Murder Revisited' (1986) 94 Journal of Political Economy 905, 905-06 (the authors acknowledge this 'appears to be a perfectly sound defense ...').

³Hart (n 1) 617.

⁴ibid 618.

⁵ibid.

⁶ibid 621.

⁷ibid 618-19.



beings.’⁸ Hart described this as ‘hysteria’,⁹ since it rests on the ‘surely untrue’ assumption that universal standards of morality exist.¹⁰

For this reason, it is necessary to look at other options before German courts, of which according to him two still remained. The first was to let the wife go unpunished which, presumably, would not have been acceptable to many. And the second was to punish her under an explicitly retrospective penal statute. Repugnant as that would have been, Hart’s argument is that it amounts to a ‘lesser evil’ than declaring laws invalid as contrary to good conscience or morality. The reason for this is perhaps best encapsulated in Hart’s own statement: ‘Surely if we have learned anything from the history of morals it is that the thing to do with a moral quandary is not to hide it.’¹¹

(8.2.2) Fuller’s Response

Fuller begins by placing in perspective Hart’s insistence of separating law and morals. According to him it is not clear whether Hart claims this separation exists, or that such a separation is desirable:¹² that is, whether in Hart’s thinking this separation ‘simply “is,” or is something that “ought to be” ...’¹³ At the same time, he is appreciative of Hart’s endeavour since it has revitalised the debate between positivists and natural-law thinkers which had degenerated into bland difference in perceptions with little common ground for debate.¹⁴ At the same time, he criticises Hart for failing to perceive law in its larger sense, in particular the issue of fidelity to law, that is, whether and under what circumstances law should be obeyed.¹⁵ He targets Hart’s treatment of Nazi Germany’s legal system, specifically what he perceives as Hart’s assumption, without enquiring into its actual workings, that the system’s appellation of ‘law’ remains meaningful enough in the context of fidelity.¹⁶

Fuller points out that in separating law from morality, positivists have not thought about how morality could or should be defined; instead, they have used the term to denote a vast range of standards that are not law.¹⁷ He identifies Hart’s contention that ‘immoral’ moralities may exist, and that certain standards of ‘what ought to be’ cannot be considered moral.¹⁸ (Curiously, he refers here to p. 624 of Hart’s article. This reference is at best tenuous; the page makes no mention of ‘immoral moralities’ beyond an oblique reference to legal systems

⁸ibid 619.

⁹ibid.

¹⁰ibid 621.

¹¹ibid 619-20.

¹²LL Fuller, ‘Positivism and Fidelity to Law: A Reply to Professor Hart’ (1958) 71 Harv LR 630, 630-31.

¹³ibid 631.

¹⁴ibid.

¹⁵ibid 632.

¹⁶ibid 633.

¹⁷ibid 635.

¹⁸ibid



that recognise slavery.) To this, Fuller has about six observations to make: (1) Hart appears to assume that 'evil aims' are as internally coherent and logical as other aims are, which Fuller strenuously disagrees with;¹⁹ (2) if weakening the separation between law and morality leads to an 'infusion of "immoral morality", then surely the positivist position cannot constitute the 'best response' to this danger;²⁰ (3) if we assume a judge who wishes to perpetrate an evil or immoral end, then such a judge would be likelier to justify his objectives within the framework of the law itself, instead of openly invoking a 'higher end' to justify suspending the law; (4) even the cruellest legal system will hesitate to expressly incorporate cruelties and injustices into the law, which he attributes to an identification of law with the most urgent demands of morality (here also he unfortunately errs in his assumption that neither he nor Hart belong to a 'minority group' in their respective countries – Hart's Jewish background is well documented²¹); (5) it is not an infusion of 'immoral morality' into the legal process but rather a tendency towards 'law-is-law' formalism that isolates law from social realities;²² and (6) a conflict between law and authoritative pronouncement by a someone who occupies high religious office (such as a Pope) should not be treated as epitomising conflicts between law and morality, and to do so would only distort the debate.²³

¹⁹ibid 636.

²⁰ibid 636-37.

²¹See e.g. David Sugarman, HLA Hart, 'Hart Interviewed: H.L.A. Hart in Conversation with David Sugarman' (2005) 32 Journal of Law and Society 267, 269.

²²Fuller (n 12) 637-38.

²³ibid 637.

Fuller's Response to Hart

- Hart appears to assume that 'evil aims' are as internally coherent and logical
- If so, the positivist position cannot constitute the 'best response' to immorality
- Judge perpetrating evil end would justify himself within framework of law
- Even the cruellest legal system will hesitate to be openly cruel
- Tendency towards 'law-is-law' formalism isolates law from social realities
- Conflict between law and authoritative pronouncement from high religious office should not be treated as conflict between law and morality

He expounds upon the notion of good order through the device of a fictitious monarch. According to him, a functional legal system must feature a minimum level of consistency in terms of connection between what the law says and how it is implemented; and it has to be unambiguously worded.²⁴ These characteristics must feature in all legal systems, even 'bad' ones. Bereft of them, the laws will not constitute a functional system. Fuller's point is that they cannot derive from the law itself, but must come from outside the law. You cannot make a law compelling the ruler to accept these principles, because this law will be just as futile as the ruler's other ones. Hence in addition to the morality that accords the ruler the competency to make law (which he terms 'external morality'), the ruler must also accept these principles as moral and apply them in his running of the legal system. This morality from which order derives is what Fuller means by the term 'internal morality' of law.

Fuller then turns to Hart's example of the wife denouncing the husband, and also his recommendation that instead of the Appeals Court refusing to recognise the law as valid, getting the legislature to retrospectively invalidate the law would have constituted a more appropriate step. This Fuller characterises as little more than a question as to 'who should do the dirty work, the courts or the legislature.'²⁵ He then proceeds to contend that Hart's conjecture that the law was a valid one emanating from a valid legal system is misplaced, and hence Appeals Court's decision is not entirely inappropriate.

²⁴ibid 644-45.

²⁵ibid 649.



His argument here is that the Nazi legal system differed from the English one not in espousing dissimilar ends, but also differences in what was considered procedurally valid. The Nazi system regularly used retrospective law to justify acts of otherwise dubious legality, and 'secret laws', including even verbal orders, to ratify barbaric acts such as genocides carried out in concentration camps. At times the system simply ignored law when it suited it; even judges regularly ignored statutes the regime had itself enacted, if it suited their convenience.²⁶ Even the husband's conviction was procedurally infirm. Among other lacunae, the facts clearly indicate he had made disparaging comments about Hitler privately to his wife, and yet he was punished under a statute which punished by death only individuals who *publicly* sought to 'injure or destroy the will' of the German people (emphasis added). Similarly, other statutes confer excessive power on administrators in determining criminal liability.²⁷ Fuller characterises this situation as representing a dilemma whether to follow an 'amoral datum called law, which has the peculiar quality of creating a moral duty to obey it', or a 'moral duty to do what we think is right and decent.'²⁸ He unequivocally rejects this dilemma as inherently nonsensical, since the legal duty here is unrelated to the needs and purposes of human life. And this is a fundamental problem with positivism: its insistence of separating law from morality leaves little space for a 'bridge' between the obligation to obey the law and other moral obligations.²⁹ In his concluding remarks, Fuller accuses positivism of a 'fear of purposive interpretation', and the broader responsibilities associated with it which lead to fidelity to law.³⁰

8.3. The Hart-Devlin Debate

The Hart-Devlin debate did not concern the nature of law, as the Hart-Fuller debate did. A more accurate description is the extent to which law can be harnessed to enforce morality, with the two maintaining their respective individual identities. As Hart puts it: 'Is the fact that certain conduct is by common standards immoral sufficient to justify making that conduct punishable by law? Is it morally permissible to enforce morality as such? Ought immorality as such to be a crime?'³¹ It was occasioned by the Wolfenden Committee

²⁶ibid 650-52.

²⁷ibid 652-55.

²⁸ibid 656.

²⁹ibid.

³⁰ibid 669-70. This did not mark the end of the debate. Fuller developed his arguments in the first edition of his seminal book *The Morality of Law* (Yale UP 1964). Hart's review of it raised several questions, particularly Fuller's appreciation of what positivism stands for (see HLA Hart, 'Book review of Morality of law by Lon Fuller' (1965) 78 Harv LR 1281). Fuller responded to these criticisms in the revised edition of *The Concept of Law* (Yale UP 1969). Constraints of time and space preclude us from examining these developments in the present essay.

³¹HLA Hart, *Law, Liberty and Morality* (OUP 1963) 4.



Report,³² which recommended *inter alia* decriminalising 'victimless crimes' such as consenting homosexual acts by adults committed in private.³³ Lord Devlin subjected this to strong criticism on several occasions. Much of his views on the matter is found in his Maccabaeen Lecture in Jurisprudence entitled 'The Enforcement of Morals',³⁴ subsequently expanded and published as an eponymous book³⁵ (all subsequent references to Devlin are be to the latter work).

Devlin's disagreement with the Wolfenden Committee derives from the latter's distinction between public and private immorality, and its perception that certain acts committed in private may be condoned. To this he says, 'I do not think that one can talk sensibly of a public and private morality any more than one can of a public or private highway. Morality is a sphere in which there is a public interest and a private interest, often in conflict, and the problem is to reconcile the two.'³⁶

He offers three broad arguments in support of his contention. The first is what can be called the 'tangible harm' thesis, which postulates that a person may so weaken himself through 'unrestricted indulgence in vice' that he 'ceases to be a useful member of society'.³⁷ Allied to this is the second argument, namely the 'widespread thesis'. If vice spreads on a large scale, then surely 'society will thereby be weakened'.³⁸ The third may be termed the 'disintegration' thesis. It says simply that widespread indulgence in immoral practices will 'diminish the common belief in right and wrong which is the intangible property of society' and bereft of which social cohesion will be jeopardised.³⁹

Hart's responses can be gleaned from several of his works, among others⁴⁰ his 1967 paper⁴¹ and his 1963 book.⁴² His main argument has been described as a 'trilemma': 'Hart argues as follows: It is difficult to say precisely what Devlin's argument is, but it appears to be A, B, or C. But none of these views is defensible. Hence, Devlin's argument is apparently indefensible.'⁴³ Hart's first objection is with regard to the disintegration thesis. He points out that this amounts to an 'empirical generalisation condition about a necessary condition for the existence

³²See Committee on Homosexual Offenses and Prostitution, *The Wolfenden Report - Authorised American Edition* (Stein and Day 1963).

³³See e.g. *ibid* 48.

³⁴Patrick Devlin, 'The Enforcement of Morals' (1959) 45 *Proceedings of the British Academy* 129.

³⁵Patrick Devlin, *The Enforcement of Morals* (OUP 1965).

³⁶*ibid* 16.

³⁷*ibid* 111.

³⁸*ibid* 111.

³⁹*ibid* 113-14.

⁴⁰See e.g. HLA Hart, 'The Use and Abuse of the Criminal Law' (1961) 4 *The Oxford Lawyer* 7; HLA Hart, *The Morality of the Criminal Law* (OUP 1965).

⁴¹HLA Hart, 'Social Solidarity and the Enforcement of Morality' (1967) 35 *University of Chicago Law Review* 1.

⁴²Hart (n 31).

⁴³Gregory Bassam, 'Legislating Morality: Scoring the Hart-Devlin Debate after Fifty Years' (2012) 25 *Ratio Juris* 117, 121.



or continued existence of a society ...'.⁴⁴ The problem, however, is that Devlin offers no evidence in support of this argument.⁴⁵ On the other hand, if as Devlin puts it, no society can exist bereft of a 'community of ideas',⁴⁶ that is, a shared morality is a definitional characteristic of society, then clearly this does not justify enforcing morality through criminal law. To put it in simple terms, this would amount to first contending that maintaining a particular morality is essential for the existence of that society, and then defining 'society' as a society that conforms to that particular morality. Which is nothing but a tautology.⁴⁷ A third possibility is that morality must be preserved essentially because the life of that society is rich enough to create a common morality. As Hart points out, this cannot be something empirically verifiable.⁴⁸

Devlin does clarify his stand to an extent. In a footnote in *The Enforcement of Morals*, he restricts himself to the contention that deviation from shared morality is only *capable* of threatening the society's existence,⁴⁹ or simply that (a) law can be used to protect morality, and (b) morality is essential to society.⁵⁰ Ultimately, as commentators like Bassam point out, even this modified argument must fail because Devlin fails to empirically substantiate it.⁵¹

8.4. The Hart-Dworkin Debate

In many ways the Hart-Dworkin is a throwback to the Hart-Fuller debate, since it concerns the role of extra-legal standards within the core of the meaning of law. It is also noteworthy that while both Dworkin and his followers extensively criticised Hart's position, the responses from the positivist camp came more from Hart's disciples than Hart himself. Hart did respond to Dworkin's views towards the end of his life, in a postscript appended to the second edition of *The Concept of Law* and published posthumously.⁵² But this constituted at best an outline. Hart did plan to write a more comprehensive response to other criticisms, but sadly died before he could fulfil this intention.⁵³ In 2006, Dworkin responded to the postscript, and also outlined a new perspective on the issue.⁵⁴ Another essay in the same book⁵⁵ responds to Jules Coleman's critique of his challenge to positivism which he had set forth in *Taking Rights Seriously*, but that is not of significance to us.

(8.4.1) Law and Principles

⁴⁴Hart (n 41) 3.

⁴⁵ibid.

⁴⁶Devlin (n 35) 10.

⁴⁷Hart (n 41) 3-4.

⁴⁸ibid.

⁴⁹Devlin (n 35) 13 n 1.

⁵⁰ibid 14 n 1.

⁵¹Bassam (n 43) 124-25.

⁵²HLA Hart, *The Concept of Law* (2nd edn, OUP 1994) 238-76.

⁵³See ibid 239 n 3.

⁵⁴Ronald Dworkin, *Justice in Robes* (Harv UP 2006) 140-86.

⁵⁵ibid 187-222.



Unlike Hart's objective of a general theory, Dworkin chooses to restrict himself largely to Anglo-American legal traditions,⁵⁶ which he subjects to close analysis. One specific site of debate is what he refers to as 'hard cases', that is, cases that do not squarely fall within the application of a legal rule. According to Hart, judges decide such cases by using their discretion. Dworkin disagrees. His view is that judges necessarily or inevitably decide such cases by relying on principles, that is, moral standards. Consequently, these principles are also an aspect of law just as rules are.

At another level, this debate could be said to concern the true position of Hart's positivism. Dworkin attributes to Hart what he calls the 'pedigree thesis', that is, the contention that it is the formal antecedents of a standard conduct that determines its legal character.⁵⁷ The question here is, did Hart really espouse a 'hard' version of this thesis, that is, a version that recognises only rules, and leaves no space for principles. Several of Hart's followers point out that there is nothing in Hart's writings to suggest this.⁵⁸

Shapiro tends to characterise this debate as a confrontation between two dissimilar perceptions of law: 'Should law be understood to consist in those standards socially designated as authoritative? Or is it constituted by those standards morally designated as authoritative? Are the ultimate determinants of law social facts alone or moral facts as well?'⁵⁹

Positivists have responded to this in two different manners. On the one hand, scholars like Joseph Raz point out that even if we assume that in certain situations judges are compelled to apply moral principles, this does not accord such principles the status of law. They draw an analogy with foreign laws: just because in some cases a judge has to apply a law of foreign jurisdiction, this fact alone will surely not transform that foreign law into a local rule?⁶⁰ Others, referred to as 'soft-positivists' because they admit the idea of morality playing a role in law, argue that Dworkin's understanding of positivism is itself flawed. According to them, positivism is not incompatible with using moral principles to determine the legal validity of a law.⁶¹ Coleman, for example, distinguishes between 'content disputes' or disputes over the content of the rule of recognition, and 'application disputes', or disagreements presupposing consensus about the

⁵⁶See Ronald Dworkin, *Taking Rights Seriously* (Harv UP 1977) 14-45.

⁵⁷*ibid* 17.

⁵⁸See e.g. Joseph Raz, 'Legal Principles and the Limits of Law' (1972) 81 Yale Law Journal 823, 845; Brian Leiter, 'Beyond the Hart-Dworkin Debate' (2003) 48 American Journal of Jurisprudence 17, 20.

⁵⁹Scott Shapiro, 'The "Hart-Dworkin" Debate: A Short Guide for the Perplexed' (2007) University of Michigan Law School Public Law and Legal Theory Working Paper 77/2007, 18 <<http://ssrn.com/abstract=968657>> Accessed 1 November 2014.

⁶⁰Joseph Raz, *The Authority of Law* (OUP 1979) 46.

⁶¹See e.g. Philip Soper, 'Legal Theory and the Obligation of a Judge: The Hart/Dworkin Dispute' (1977) 75 Michigan Law Review 473; David Lyons, 'Principles, Positivism and Legal Theory' (1977) 87 Yale Law Journal 415.



content of a rule but involving disputes about its implementation. Hard cases could be treated as application disputes, since here the disagreement among judges is not about what the rule of recognition says but only the correct way in which it is to be applied.⁶²

(8.4.2) Developments in *Law's Empire*⁶³

In *Law's Empire*,⁶⁴ Dworkin revises his attack on positivism. Here he points out that there can be two possible disagreements regarding what he terms the 'grounds of law', that is, the formal criteria a rule needs to fulfil in order to be called a law. The first is whether in a particular case the criteria have actually been fulfilled or not. For example, a question may be raised whether enough members were present and voting at the time a particular bill was passed by the Lok Sabha. The second kind of disputes do not pertain to empirical facts about whether applicable grounds have been fulfilled. Rather, they concern conflicts as to what exactly these grounds are.

To illustrate this second type of dispute, Dworkin invokes the US Supreme Court decision *Tennessee Valley Authority v. Hill*.⁶⁵ Here the majority interpreted literally the Endangered Species Act, 1973 and held that a \$100 million dam project should be halted (and hence so much public money wasted) because of the threat it posed to the snail darter, an endangered fish. The dissenting opinion here insisted that the wording of the statute should be read so as to avoid 'absurd' results, that is to say, in consistency with 'some modicum of common sense'. Here, as Dworkin points out, the dispute is not empirical in character; both sides agree that the 1973 Act is valid. The only dispute is whether the plain meaning of the statute should be adhered to even when it leads to an absurd conclusion.

The implication here is that 'judges often disagree with one another about what the grounds of law are.'⁶⁶ This, according to Dworkin, is something positivism cannot contemplate. He points out that all varieties of positivism accept what is called the 'conventionality thesis' which, using his own terminology, means that the grounds of law are determined by agreement or convention. In such circumstances, if convention determines the grounds of law, then surely this is incompatible with the idea that disagreements about the grounds of law can exist.⁶⁷

⁶²See Jules Coleman, *Markets, Morals and the Law* (CUP 1988) 20.

⁶³Some tend to refer to this argument by the term the 'semantic sting'. Shapiro warns against this, saying that Dworkin invokes the term in *Law's Empire* only *after* discussing the 'theoretical disagreements' objection. Moreover, he indicates by the term a different argument based on criterial semantics. This need not concern us. See Shapiro (n 57) 38 n 58.

⁶⁴Ronald Dworkin, *Law's Empire* (Harv UP 1986).

⁶⁵437 US 153 (1978).

⁶⁶Shapiro (n 59) 37.

⁶⁷Dworkin (n 64) 37-44.



Positivists respond to this by saying that the disagreement concerns not what the law is, but what the law ought to be. Specifically, it is about how the law should be *repaired* in order to avoid absurdities. Hence the dispute is not in the nature of a theoretical disagreement at all. But if this is so, then why do they advance arguments that look like theoretical disagreements? According to positivists, they do so to obscure the true nature of their endeavour, which is legislative in nature. That is, when judges try to fill gaps in legislature, or to interpret them in such a way as to avoid absurdity, they actually engage in acts of legislation since they attribute to statutes meanings not sustained by a plain reading. But they cannot do so openly, since this is formally the preserve of legislatures. Hence they engage in the fiction that they only discover the law that is already 'out there'. And consequently they claim also that their own interpretations are not really innovations but already exist 'out there' already. In this manner, disputes about interpretation, in order to cloak their true legislative character, are portrayed as theoretical disagreements about what the law is.⁶⁸

(8.4.3) *Justice in Robes: A New Approach*

In *Justice in Robes*, Dworkin both addresses Hart's criticism of his views, and outlines a new approach. Here we shall restrict ourselves to the first. Dworkin begins Hart's view that he (Dworkin) might be right about value judgments being made in legal practice when determining hard cases, but but even such an account would amount to what Hart refers to as a second-order description and not a first-order description, which has to be a descriptive account of legal practice.⁶⁹

Dworkin's response is structured around the premise that that philosophers tend to commence from defining and analysing key political concepts, concepts such as liberty, for example. They acknowledge that liberty is not absolute, and at times it must yield to other concepts such as the need to prohibit violent crime. However, philosophers he identifies as 'Archimedean' – (he includes in this category like Isaiah Berlin) – claim that this act of privileging one notion above another does not amount to a value judgment, or a qualification of the idea of liberty, but 'just a politically neutral statement of what liberty, properly understood, really is.' Hence even if the circumstances in which they conflict requires some value choices, the fact that they may and do conflict amounts not to a value judgment but a conceptual fact.

To this, he identifies two shortcomings. First, political argument may involve disagreements about these very conceptual issues, that is, at times debates about how liberty and security conflict may entail debates on the very meaning of liberty. Secondly, a practice may be 'described' in several different senses.⁷⁰ Debates on 'democracy' can and do include questions about what constitutes it.

⁶⁸For a detailed exegesis, see Shapiro (n 59) 32-33.

⁶⁹Dworkin (n 54) 145.

⁷⁰ibid 145-46.



Is it only about majority rule? Or are free speech, or other rights, or judicial review intrinsic aspects of democracy? And likewise, 'Disputes about justice almost always take the form of argument, not about how important justice is or when it should be sacrificed to other values, but what it is.'⁷¹ For this reason, he infers that 'The Archimedean story ignores the way in which political concepts actually function in political argument. They serve as abstract plateaus of agreement.'⁷² A variant perspective is that such political concepts are "mixed" descriptive and normative concepts', that is, that concepts such as democracy and justice have both core descriptive, neutral components as well as 'emotive' components (*i.e.* social practice and expectation) wholly separable from each other.⁷³

Dworkin differs by claiming that concepts like democracy and justice are actually interpretations of certain values. The descriptive aspect cannot be separated from these values. And the discourse surrounding the descriptive aspect becomes one about 'which assignment of a descriptive sense best captures or realizes [*sic*] that value.' Which also means that the positivist who claims democracy or liberty to be inherently value-neutral or bereft of value cannot simply choose any description of these concepts, and then argue on the basis of that definition. Rather, it is necessary for him to identify what Dworkin calls the 'best defensible conception' of democracy and liberty, and then argue on the basis of *those* conceptions that they are intrinsically value-neutral.⁷⁴

His second criticism locates in the positivist claim that identifying 'political values' involves a descriptive rather than normative endeavour. To this he asks, in what manner are we to understand the notion of 'descriptive'?⁷⁵ He identifies three ways this may be undertaken: *First*, as semantic analysis undertaken to figure out how people actually use a term even if they are not conscious of its meaning; *secondly*, as structural analysis that seeks to identify the 'true nature' of these concepts and reduce them to their constitutive components; or *thirdly*, as a statistical generalisation, that is, an effort to determine how most if not all people use a certain concept.

The first rests on the assumption that some 'shared criteria' exist, which determine whether a particular use of 'liberty' or 'democracy' is correct or incorrect, which is precisely what he denies: most concepts, and especially justice, his 'easiest case', are themselves highly contested notions and hence do not conform to any kind of shared criteria.⁷⁶ His response to the second rests on the distinction between what he calls 'natural kinds' and 'political kinds'. The first refers to concepts like the DNA of tigers, the elementary composition of gold, that is, some sort of a fundamental, intrinsic natural characteristic. Political concepts,

⁷¹ibid 148.

⁷²ibid 147.

⁷³ibid 149.

⁷⁴ibid 149-50.

⁷⁵ibid 150.

⁷⁶ibid 150-51.



he argues, possess no such characteristic: '[W]e would still need an account of what makes one feature of a social or political arrangement essential to its character as a democracy and another feature only contingent . . .'.⁷⁷ A variant may involve determining how concepts are generally used: suppose a long list of every marriage ever performed reveals no instance of same-sex marriage, can we use this finding to determine if homosexuals can marry?⁷⁸ This is actually somewhat reminiscent of Hart's own insights about rules and how the existence of a rule cannot be determined from observing external behaviour alone.⁷⁹ The third sense, which according to him treats concepts in terms of 'historical generalizations [*sic*]' is similarly dismissed as 'not just weaker than the conceptual claims political philosophers make, but too weak to distinguish political philosophy from social history or political anthropology.'⁸⁰

This analysis leads to how he construes the distinction between conceptual and normative understandings. 'Natural kinds' and 'political kinds' are similar in that they are 'real' ('[N]either their existence nor their features depend on anyone's invention or belief or decision') and they possess 'deep structure', *i.e.* inner or intrinsic features that determine the outward characteristics by which we recognise them.⁸¹ The difference is that the deep structure of political concepts is normative rather than conceptual. This does not mean that it cannot sustain conceptual analysis; indeed, it is possible for the political philosopher to analyse the normative core of democracy or liberty to reveal 'the essence of liberty' just like chemists seek to identify the essence of water or gold. However, such a philosophical enquiry has to be normative and 'engaged'. Because to analyse justice or liberty without looking what is good about them will be similar to analysing the colour red without mentioning its redness.⁸²

To understand what this means, we look at what he calls 'detached' and 'integrated' values. The value of science or art, for example, lies within themselves. We do not say that science is good because, say, they serve social goods or that our lives are made better by them. On the other hand, any detached understanding of liberty or justice amounts to a futile quest, and they can be meaningfully studied only in the light of how they make our lives more rich and meaningful. They are considered values precisely because they contribute to other values; in fact the more precisely their contributions to other values are identified, the better they themselves are understood. A proper appreciation of liberty requires understanding its impact on society, people's lives etc. This is what he terms 'integrated' values.⁸³ And this inter-relationship across values and how they impact on each other has to be understood not in terms of a hierarchy (*i.e.* lower-order values feeding higher ones), but rather as a non-hierarchical

⁷⁷ibid 153-53.

⁷⁸ibid 153.

⁷⁹Hart (n 52) 56-57.

⁸⁰Dworkin (n 54) 153-54.

⁸¹ibid 154-55.

⁸²ibid 155-56.

⁸³ibid 158-59.



framework – Dworkin invokes the rather fanciful image of a geodesic dome here.⁸⁴ Hence in his view democracy must be understood in terms of how it serves or reinforces equality and liberty, and how these in turn serve democracy, and so forth.⁸⁵ By his own admission: ‘All this sounds, no doubt, impossibly and even unattractively holistic. But I see no other way in which philosophers can approach the assignment of making as much critical sense as is possible of any, let alone all, parts of this vast humanist structure.’⁸⁶

The connection with law is established by applying to it what we saw of political concepts. According to Dworkin, Hart’s account of law suffers from both the shortcomings of the Archimedean approach to political concepts. First, Hart’s sources thesis does not help resolve hard cases where the law appears unclear and one side claims relief on the basis of moral argument rather than law. In such circumstances, according to Dworkin, Hart’s thesis is ‘not neutral’ and takes sides in favour of those who argue that a claim cannot exist unless it is explicitly sustained by the law.⁸⁷ He finds even more problematic Hart’s claims to being ‘descriptive’. Dworkin is convinced that Hart’s descriptiveness can be classified as a kind of semantic analysis and, as he terms it, a ‘doomed’ one at that. But since Hart himself vigorously denied this claim, Dworkin seeks to look ‘elsewhere’.⁸⁸ It cannot be considered structural analysis either; law, like liberty, does not have any DNA in the way tigers do.⁸⁹ And if it is to be treated as an empirical generalisation, then a few counter-examples would be enough to render it a ‘spectacular failure’.⁹⁰

Dworkin then proceeds to speculate on how Hart’s conception can be integrated or accommodated within his own views. His method of rescuing the concept of law from ‘Archimedean obscurantism’ is to explicitly acknowledge that understanding the law is a normative and political enterprise, and cannot ever be descriptive or value-neutral. Among the values that it entails is that of legality or ‘rule of law’, which itself must be understood in terms of how it relates to other connected values like justice and fairness.⁹¹ ‘Hart’s sources thesis is a conception of legality. We could make little sense of either legality or law if we denied this intimate connection between conceptions of legality and their identification of true claims of law.’⁹² Thus in a hard case where the law is unclear, one party may plead the needs of justice, while the second may argue on the basis of legality, such as there being nothing in the law that explicitly substantiates the first party’s claim of justice. Thus Hart’s theory is effectively anchored to the

⁸⁴ibid 160.

⁸⁵ibid 161.

⁸⁶ibid.

⁸⁷ibid 164-65.

⁸⁸ibid 165-66.

⁸⁹ibid.

⁹⁰ibid 166-67.

⁹¹ibid 170-71.

⁹²ibid 170.



normative value of legality, one among many related values within Dworkin's 'geodesic dome'.

8.5. Conclusion

It is clear from the above that positivism has had to confront several challenges in the last century. This may not be of itself so surprising. After all, any body of thought must necessarily attract detractors and critics. If anything is remarkable about this discourse, it is surely the variety and diversity of these attacks. Fuller contends that a legal system has to adopt certain norms of internal morality in order to ensure good order. This implies that theoretically law *can* be separated from norms of morality and good order; it is only at the level of functionality that they must overlap. Dworkin claims, on the other hand, that principles are as intrinsic to 'the law' as rules are. He also contends that certain basic premises of positivism, such as the conventionality thesis, are inherently flawed since they are inconsistent with commonly prevalent theoretical debates about the grounds of law. Lastly Devlin treats law and morality as distinct, and claims only that they need to overlap in order to fulfil a social necessity.

In today's discourse of jurisprudence, Fuller and especially Devlin are not accorded as much significance as they used to be. On the other hand, the Hart/Dworkin debate rages on, inconclusively, with daggers continuing to be drawn on both sides. This is not to say the others have become obsolete. Dworkin gained much from Fuller's perspectives. At the very least, they contribute significantly to our understanding of positivism and its shortcomings.